

SMALL BUSINESS SUBCONTRACTING PLAN SOLICITATION/ N62470-26-R-0015

This template is designed to be consistent with FAR 19.704, Subcontracting Plan Requirements and FAR clause 52.219-9, Small Business Subcontracting Plan (“subcontracting plan”). Other formats may be acceptable, including commercial or master subcontracting plans; however, failure to include the essential information exemplified in this individual plan template may be cause for delay in acceptance or rejection of a bid/offer.

(TO BE SUBMITTED BY OTHER THAN SMALL BUSINESSES ONLY)
(Also referred to as large businesses)

(CONTRACTOR'S NAME)
(ADDRESS)

(CONTRACTOR'S CORPORATE HEADQUARTERS ADDRESS)
[If same as above, so indicate].

N62470-26-R-0015

Military Construction Project (MILCON) P732 Design-Bid-Build, Electrical Distribution
System Upgrades (Gosport Substation Only) at Norfolk Naval Shipyard (NNSY) in
Portsmouth, Virginia.
(Date Prepared)

PLAN SUBMITTED BY:

Signature: _____ Date: _____

Printed Name: _____

Title: _____

REVIEWED:

Small Business Professional

Date

REVIEWED:

Small Business Administration
Procurement Center Representative

Date _____

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ACCEPTED:

Procuring Contracting Officer

Date

☐ The SBSP contains a SDB goal of less than 5%. A detailed reasoning for recommending approval is provided below. DFARS 219.705-4(d) requires approval one level above the Contracting Officer.

☐ The SBSP contains a zero goal in one or more small business category. Advice has been obtained and recommendations received from the cognizant Contract Administration Office have been considered. Detailed reasoning for recommending approval is provided below. NMCARS 5219.705-4(d) requires approval one level above the Contracting Officer.

REMARKS:

APPROVED: ONE LEVEL ABOVE THE CONTRACTING OFFICER (IF APPLICABLE)

Contracting Officer (one level above)

Date

☐ The SBSP contains a SDB goal of less than 5%. Based upon detailed reasoning provided above, this SBSP is approved as required by DFARS 219.705-4(d).

☐ The SBSP contains a zero goal in one or more small business category. Based upon the detailed reasoning provided above, this SBSP is approved as required by NMCARS 5219.705-4(d).

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SUBCONTRACTING PLAN

This document, together with any attachments, is submitted as a subcontracting plan to satisfy the requirements of Federal Acquisition Regulations (FAR) 19.704. The following goals are established for the contract (including base period and all option items/periods (if applicable)). Attachment 1 provides breakdowns for the base year and option periods. *Percentages may be rounded to nearest tenth of a percent. INCLUDE SUPPORTING RATIONALE FOR ALL PROPOSED GOALS AND ENSURE THIS PLAN IS CONSISTENT WITH ANY SMALL BUSINESS PARTICIPATION AND COMMITMENT STRATEGY ASSOCIATED WITH THIS ACQUISITION.*

1. a. Total Contract Value \$ _____
(including options)
- b. Total Subcontracted \$ _____ % of 1.a
(inclusive of all planned subcontracting to all businesses, regardless of size)
- c. Total Prime-performed \$ _____ % of 1.a

2. The following dollars and percentage goals are applicable to the contract cited above. (See FAR 19.704(a)(1) and (2))

- a. Large Business \$ _____ % of 1.b

This number represents total planned subcontract dollars that will be awarded to other than small business concerns (including subcontracts awarded to Historically Black Colleges, Universities and Minority Institutions (HBCU/MIs).

- b. Small Business (SB) \$ _____ % of 1.b

This number represents total planned subcontract dollars that will be awarded to **small business concerns**** as well as subcontracts awarded under the AbilityOne Program to SourceAmerica (formerly NISH) and National Industries for the Blind (NIB) organizations and subcontracts awarded to Alaskan Native Corporations (ANCs) and Indian Tribes as prescribed in FAR 19.703(c) & FAR 52.219-9.

(** Small business concerns include SBs, Small Disadvantaged Businesses (SDB), Women-Owned Small Businesses (WOSB), Historically Underutilized Business Zone (HUBZone) Small Businesses, Veteran-Owned Small Businesses (VOSB) and Service-Disabled Veteran-Owned Small Businesses (SDVOSB))

(Include 2.c, 2.d, 2.e, 2.f, 2.g, 2.h, and 2.i, below).

Notes:

- (1) *Lines 1.b + 1.c = 100% of Line 1.a*
- (2) *Lines 2.a + 2.b = 100% of Line 1.b*
- (3) *Lines 2.c, 2.d, 2.e, 2.f, 2.g, 2.h, and 2.i are calculated against Line 1.b, the total value of overall subcontract dollars.*

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(4) Subcontracts to companies that qualify in multiple categories of SB must be reported under each category. For example: if you are planning to subcontract \$100,000 to company ABC, a woman-owned SDB that is also a certified HUBZone SB, you will report \$100,000 on line 2.b (SB), 2.c (HUBZone), 2.d (WOSB) and 2.e (SDB). Accordingly, the sum of 2.c through 2.i will not necessarily equate to the value of 2.b.

(5) Designated HUBZone SBs must be certified by the Small Business Administration (SBA).

c. HUBZone SB \$ _____ % of 1.b

This number represents total planned subcontract dollars that will be awarded to qualified HUBZone small business concerns certified by SBA. (Included in total for 2.b, above)

d. WOSB \$ _____ % of 1.b

This number represents total planned subcontract dollars under that will be awarded to WOSBs. (Included in total for 2.b, above)

e. SDB \$ _____ % of 1.b

This number represents total planned subcontracting dollars that will be awarded to small business concerns owned and controlled by socially and economically disadvantaged individuals (include in this category the planned subcontracting dollars to ANCs and Indian Tribes shown in total for 2.i below). (Included in total for 2.b, above)

f. VOSB \$ _____ % of 1.b

This number represents total planned subcontract dollars that will be awarded to small business concerns owned and controlled by veterans (include in this category the planned subcontracting dollars for SDVOSBs shown in 2.g below). (Included in total for 2.b, above)

g. SDVOSB \$ _____ % of 1.b

This number represents total planned subcontract dollars under this contract that will be awarded to subcontractors who are small business concerns owned and controlled by service-disabled veterans. (Included in totals for 2.b and 2.f, above)

h. AbilityOne \$ _____ % of 1.b.

This number represents total planned subcontract dollars that will be awarded to AbilityOne associated nonprofit agencies through SourceAmerica and NIB. Per DFARS 219.703, subcontracts awarded to qualified non-profit agencies for the blind or severely disabled may be counted toward the small business subcontracting goal. (Included in total for 2.b, above)

i. Alaskan Native
Corporations &
Indian Tribes \$ _____ % of 1.b.

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This number represents total planned subcontract dollars that will be awarded to ANCs and Indian Tribes and for which the prime contractor has been designated to receive SDB credit. *(See FAR 19.703 & FAR 52.219-9)* (Included in totals for 2.b and 2.e, above)

3. The following principal products and/or services will be subcontracted under this contract. *(See FAR 19.704(a)(3))*

a. Products/services planned to be subcontracted to LB concerns (including HBCU/MIs):

Firm subcontract commitments:

Name of Company/Unique Entity ID

Products or Services

b. Products/services planned to be subcontracted to SB concerns:

Firm subcontract commitments:

Name of Company/Unique Entity ID

Products or Services

c. Products/services planned to be subcontracted to certified HUBZone concerns:

Firm subcontract commitments:

Name of Company/Unique Entity ID

Products or Services

d. Products/services planned to be subcontracted to WOSB concerns:

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Firm subcontract commitments:

Name of Company/Unique Entity ID

Products or Services

- e. Products/services planned to be subcontracted to SDB concerns:

Firm subcontract commitments:

Name of Company/Unique Entity ID

Products or Services

- f. Products/services planned to be subcontracted to VOSB concerns:

Firm subcontract commitments:

Name of Company/Unique Entity ID

Products or Services

- g. Products/services planned to be subcontracted to SDVOSB concerns:

Firm subcontract commitments:

Name of Company/Unique Entity ID

Products or Services

- h. Products/services planned to be subcontracted to AbilityOne organizations:

Firm subcontract commitments:

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<u>Name of Organization/Unique Entity ID</u>	<u>Products or Services</u>
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_____	_____
_____	_____

_____	_____
_____	_____

- i. Planned products/services to be subcontracted to ANCs and Indian Tribe businesses (See 2.i above for explanation):

Firm subcontract commitments:

Name of Company/Unique Entity ID

Products or Services

_____	_____
_____	_____

_____	_____
_____	_____

4. The following methods were used to develop the above subcontracting goals. *Include a statement explaining how the products and services to be subcontracted were established, how the products and services to be subcontracted to SB, SDB, WOSB, HUBZone, VOSB, SDVOSB concerns, AbilityOne program participants, ANCs and Indian Tribes were determined, and how their capabilities were assessed. (See FAR 19.704(a)(4))*

5. The following methods were/will be used to identify potential sources for solicitation purposes: **(See FAR 19.704(a)(5))** *The offeror may rely on the information contained in SAM as an accurate representation of a concern's size and ownership characteristics for the purposes of maintaining a SB, VOSB, SDVOSB, HUBZone, SDB, and WOSB source list. Use of SAM as a source list does not relieve the offeror of its responsibilities (e.g., outreach, assistance, counseling, or publicizing subcontracting opportunities.*

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6. Indirect and overhead costs ☐ have ☐ have not been included in the goals specified in 1. and 2. above. *If "have" is checked, explain the method used in determining the proportionate share of indirect costs to be incurred with SBs (including all subcategories delineated above). (See FAR 19.704(a)(6))*

7. The following employee will administer the subcontracting program: *(See FAR 19.704(a)(7))*

NAME: _____

ADDRESS: _____

TELEPHONE NO.: _____

EMAIL: _____

TITLE: _____

This individual has general overall responsibility for the company's small business program. This person should have knowledge of the federal small business programs and be knowledgeable about federal procurement practices. If the prime decides to change the person in this position, they must notify the Contracting Officer and the Small Business Professional. The administrator is responsible for the development, preparation and execution of this subcontracting plan, and for monitoring performance relative to contractual subcontracting requirements contained in this plan, including:

- a. Developing and maintaining bidders lists of SB, SDB, WOSB, HUBZone SB, VOSB, SDVOSB concerns, AbilityOne program participants, HBCU/MIs, ANCs, and Indian Tribes (hereafter referred to as the small business community) from all possible sources.
- b. Counsel and discuss subcontracting opportunities with representatives of the small business community.
- c. Ensuring that procurement packages are structured to permit the small business community to participate to the maximum extent possible.
- d. Assuring inclusion of the small business community in all solicitations for products or services, which they are capable of providing.
- e. Reviewing solicitations to remove statements, clauses, etc., which may tend to restrict or prohibit the small business community participation.
- f. Assign each subcontract the NAICS code and corresponding size standard that best describes the principal purpose of the subcontract.
- g. Confirm that a subcontractor representing itself as a HUBZone small business concern is certified by SBA as a HUBZone small business concern by SBA in accordance with 52.219-8(d)(2)
- h. Provide notice to subcontractors concerning penalties and remedies for misrepresentations of business status as small, veteran-owned small business, HUBZone small, small disadvantaged, or women-owned small business for the purpose of obtaining a subcontract that is to be included as part or all of a goal contained in the subcontracting plan.
- i. Ensuring periodic rotation of potential subcontractors on bidders lists.
- j. Ensuring that the bid proposal review board documents its reasons for not selecting low bids submitted by the small business community.

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- k. Ensuring the establishment and maintenance of records of solicitations and subcontract award activity.
 - l. Attending or arranging for attendance of company counselors at Business Opportunity Workshops, Minority Business Enterprise Seminars, Trade Fairs, etc.
 - m. Conducting or arranging for the motivational training for purchasing personnel pursuant to the intent of P.L. 95-507.
 - n. Monitoring attainment of proposed goals.
 - o. Preparing and submitting required periodic subcontracting reports.
 - p. Coordinating contractor's activities during the conducting of compliance reviews by Federal agencies.
 - q. Coordinating the conduct of contractor's activities involving its small business subcontracting program.
 - r. Provide a list of additional duties or CheckNone ☐.
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8. The following efforts will be taken to ensure that the small business community will have an equitable opportunity to compete for subcontracts. (*See FAR 19.704(a)(8)*)

- a. Outreach efforts will be made by identifying:
 - Contacts with minority and small business trade associations.
 - Contacts with business development organizations.
 - Attendance at small and minority business procurement conference and trade fairs.
 - b. Sources will be requested from the System for Award Management (SAM) website available at <https://www.sam.gov/> on the Internet.
Automated data base sources to be used, other than SAM, will be as follows.
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- c. The following internal efforts will be made to guide and encourage buyers:
 - (i) Workshops, seminars and training programs will be conducted.
 - (ii) Activities will be monitored to evaluate compliance with this subcontracting plan.
 - (iii) Arrange interviews with the small business community.
 - d. Describe how your small business database, source lists, guides, and other data will be maintained and utilized by buyers in soliciting subcontracts; e.g., rotation of firms in the data base, keeping data base current and useful.
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9. Contractor Name agrees that the FAR clause 52.219-8 entitled "Utilization of Small Business Concerns " will be included in all subcontracts which offer further subcontracting opportunities, and all subcontractors, except SB concerns, that receive subcontracts in excess of \$750,000 (\$1,500,000 for construction) will be required to adopt plans that comply with the requirements of the clause at 52.219-9, Small Business Subcontracting Plan. Such plans will be reviewed by comparing them with the

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provisions of P.L. 95-507 and assuring that all minimum requirements of an acceptable subcontracting plan have been satisfied. The acceptability of percentage goals shall be determined on a case-by-case basis depending on the supplies/services involved, the availability of potential small and small disadvantaged subcontractors, and prior experience. Once approved and implemented, plans will be monitored through the submission of periodic reports, and/or, as time and availability of funds permit, periodic visits to review subcontracting program progress. *(See FAR 19.704(a)(9))*

- 10.** Contractor Name will submit such periodic reports and cooperate in any studies or surveys as may be required by the contracting agency or the Small Business Administration in order to determine the extent of compliance by the offeror (contractor) with the subcontracting plan and with FAR clause 52.219-8. *(See FAR 19.704(a)(10))*

Contractor Name will:

- a. Submit the Individual Subcontract Report (ISR) and the Summary Subcontract Report (SSR) using the Electronic Subcontracting Reporting System (eSRS) at <http://www.esrs.gov>, following the instructions in the eSRS and FAR Clause 52.219-9.

1 st reporting period – Oct 1 through March 31	Submit NLT 30 April
2 nd reporting period – Oct 1 through September 30	Submit NLT 30 October

Reports are required when due, regardless of whether there has been any subcontracting activity since the inception of the contract or the previous reporting period. When a Contracting Officer rejects a report, a revised report shall be submitted within 30 days of the notice of report rejection.

A separate “Final” ISR is required at contract completion.

Upon award of the contract, the identity of the individual(s) responsible for acknowledging receipt or rejecting the ISR and the SSR will be provided to the awardee.

- b. After November 30, 2017, include subcontracting data for each order when reporting subcontracting achievements for indefinite-delivery, indefinite quantity contracts intended for use by multiple agencies;
- c. Ensure that its large business subcontractors with subcontracting plans agree to submit the ISR and/or the SSR using the eSRS;
- d. Provide its prime contract number and its unique entity identifier, and the e-mail address of the Government or contractor official responsible for acknowledging or rejecting the reports, to all first-tier large business subcontractors with subcontracting plans so they can enter this information into the eSRS when submitting their ISRs;
- e. Require that each large business subcontractor with a subcontracting plan provide the prime contract number and its own unique entity identifier, and the e-mail address of the Government or contractor official responsible for acknowledging or rejecting the reports, to its large business subcontractors with subcontracting plans; and
- f. Ensure that the identified Contracting Officer and Small Business Professional assigned to the contract are included on the eSRS email notification distribution for each report.

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****Note 1: If contract value is \$30,000 or more and the solicitation includes FAR Clause 52.204-10, Reporting Executive Compensation and First-Tier Subcontract Awards, ensure additional reporting requirements are met in eSRS in accordance with this clause.***

- 11. Contractor Name** will maintain at least the following types of records to document compliance with this subcontracting plan: ***(See FAR 19.704(a)(11))***
- a. Source lists, guides, and other data identifying small business, HUBZone small business, women-owned small business, small disadvantaged business, veteran-owned small business and service-disabled veteran-owned small business.
 - b. Organizations contacted to locate small business, HUBZone small business, women-owned small business, small disadvantaged business, veteran-owned small business and service-disabled veteran-owned small business.
 - c. On a contract-by-contract basis, records on all subcontract solicitations over \$150,000 and indicating for each solicitation:
 - (i) whether small business, HUBZone SBs, WOSBs, SDBs, VOSBs and SDVOSBs were solicited, and if not, why not; and
 - (ii) reason why the award was not made to a small business concern.
 - (iii) written designations from ANCs or Indian Tribes, in accordance with FAR 19.703, if applicable.
 - d. Records to support other outreach efforts, e.g., contacts with small business trade associations, business development organizations, and attendance at small business procurement conferences and trade fairs, and frequency of accessing SAM.
 - e. Maintain records of internal guidance and encouragement to buyers through:
 - (i) Workshops, seminars, training; and
 - (ii) Monitoring performance to evaluate compliance with the program's requirement.
 - f. On a contract-by-contract basis, records to support award data submitted by the contractor to the Government including the name, address, and business size of each subcontractor.
- 12. Contractor Name** will make a good faith effort to acquire articles, equipment, supplies, services, or materials, or obtain the performance of construction work from the small business concerns that the offeror used in preparing the bid or proposal, in the same or greater scope, amount, and quality used in preparing and submitting the bid or proposal. Responding to a request for a quote does not constitute use in preparing a bid or proposal. An offeror used a small business concern in preparing the bid or proposal if – ***(See FAR 19.704(a)(12))***
- a. The offeror identifies the small business concern as a subcontractor in the bid or proposal or associated small business subcontracting plan, to furnish certain supplies or perform a portion of the contract; or
 - b. The offeror used the small business concern's pricing or cost information or technical expertise in preparing the bid or proposal, where there is written evidence of an intent or understanding that the small business concern will be awarded a subcontract for the related work if the offeror is awarded the contract.
- 13. Contractor Name** will provide the Contracting Officer with a written explanation if the contractor fails to acquire articles, equipment, supplies, services or materials or obtain the performance of construction work as described in paragraph 12 of this plan. This written explanation will be submitted to the Contracting Officer within 30 days of contract completion. ***(See FAR 19.704(a)(13))***

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- 14.** Contractor Name will not prohibit a subcontractor from discussing with the Contracting Officer any material matter pertaining to payment to or utilization of a subcontractor. *(See FAR 19.704(a)(14))*
- 15.** Contractor Name will pay its small business subcontractors on time and in accordance with the terms and conditions of the subcontract, and notify the Contracting Officer if the offeror pays a reduced or an untimely payment to a small business subcontractor (see [52.242-5](#)). *(See FAR 19.704(a)(15))*

*****END OF PLAN*****

The original copy of this plan will be included in the file and made a material part of the contract.

Copy to:
Small Business Professional
SBA Procurement Center Representative

**BASE PERIOD AND OPTION YEAR SUBCONTRACTING
GOALS SOLICITATION N62470-24-R-0062**

	<u>Base Period</u>	<u>Option Period 1</u>	<u>Option Period 2</u>	<u>Option Period 3</u>	<u>Option Period 4</u>	<u>Total Periods</u>
1.a <u>Total Contract</u>	\$ _____	\$ _____	\$ _____	\$ _____	\$ _____	\$ _____
1.b <u>Total Subcontracted</u>	\$ _____	\$ _____	\$ _____	\$ _____	\$ _____	\$ _____
<u>(% of Line 1.a)</u>	% _____	% _____	% _____	% _____	% _____	% _____
1.c <u>Total Prime</u>	\$ _____	\$ _____	\$ _____	\$ _____	\$ _____	\$ _____
<u>(% of Line 1.a)</u>	% _____	% _____	% _____	% _____	% _____	% _____
2.a <u>To LB</u>	\$ _____	\$ _____	\$ _____	\$ _____	\$ _____	\$ _____
<u>(% of Line 1.b)</u>	% _____	% _____	% _____	% _____	% _____	% _____
2.b <u>To SB</u>	\$ _____	\$ _____	\$ _____	\$ _____	\$ _____	\$ _____
<u>(% of Line 1.b)</u>	% _____	% _____	% _____	% _____	% _____	% _____
2.c <u>To HUBZone SB</u>	\$ _____	\$ _____	\$ _____	\$ _____	\$ _____	\$ _____
<u>(% of Line 1.b)</u>	% _____	% _____	% _____	% _____	% _____	% _____
2.d <u>To WOSB</u>	\$ _____	\$ _____	\$ _____	\$ _____	\$ _____	\$ _____
<u>(% of Line 1.b)</u>	% _____	% _____	% _____	% _____	% _____	% _____
2.e <u>To SDB</u>	\$ _____	\$ _____	\$ _____	\$ _____	\$ _____	\$ _____
<u>(% of Line 1.b)</u>	% _____	% _____	% _____	% _____	% _____	% _____
2.f <u>To VOSB</u>	\$ _____	\$ _____	\$ _____	\$ _____	\$ _____	\$ _____
<u>(% of Line 1.b)</u>	% _____	% _____	% _____	% _____	% _____	% _____
2.g <u>To SDVOSB</u>	\$ _____	\$ _____	\$ _____	\$ _____	\$ _____	\$ _____
<u>(% of Line 1.b)</u>	% _____	% _____	% _____	% _____	% _____	% _____
2.h <u>To AbilityOne</u>	\$ _____	\$ _____	\$ _____	\$ _____	\$ _____	\$ _____
<u>(% of Line 1.b)</u>	% _____	% _____	% _____	% _____	% _____	\$ _____
2.i <u>To ANCs/Indian Tribes</u>	\$ _____	\$ _____	\$ _____	\$ _____	\$ _____	\$ _____
<u>(% of Line 1.b)</u>	% _____	% _____	% _____	% _____	% _____	% _____

Attachment 1